

JAN 14 1997



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 11319
(SECOND REVISION)

EXPIRATION DATE: December 31, 1998

(FOR RENEWAL, SEE 49 CFR SECTION 107.109.)

1. GRANTEE: Elf Atochem North America, Inc., Philadelphia, PA.
2. PURPOSE AND LIMITATION: This exemption authorizes the transportation in commerce of dimethylaminoethyl acrylate in certain DOT Specification IM 101 portable tanks. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 172.101 Column 7.
5. BASIS. This exemption is based on Elf Atochem North America, Inc.'s application dated November 1, 1996, submitted in accordance with 49 CFR 107.109.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description / proper shipping name	Hazard Class/ Division	ID number	Packing Group
Dimethylaminoethyl acrylate / Poisonous liquids, corrosive, n.o.s.	6.1	UN2927	II

7. PACKAGING AND SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed is a DOT Specification IM 101 portable tank with the following design characteristics:

- o Minimum test pressure of 4 bar
- o Pressure relief devices as required by 49 CFR 178.270-11(a)(3)
- o Bottom outlets prohibited
- o Minimum equivalent thickness of mild steel = 6.35mm.

b. TESTING - Each portable tank must be retested and reinspected in accordance with the requirements contained in 49 CFR 173.32b.

c. MARKING - Each portable tank must be plainly marked on both sides near the middle, in letters at least two inches high on a contrasting background, "DOT-E 11319".

8. SPECIAL PROVISIONS.

a. Persons who receive the packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

b. Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.

c. Each tank must be visually inspected prior to shipment to ensure that it is not damaged.

d. A copy of this exemption must be carried aboard each cargo vessel used to transport packages covered by this exemption.

9. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle and cargo vessel.10. MODAL REQUIREMENTS:

a. Rear end protection for the motor vehicle must meet the requirements of 49 CFR 178.340-8(b) and 393.86.

b. Each portable tank must be secured to the motor vehicle in conformance with the requirements of 49 CFR 393.100 through 393.106.

11. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq.:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:

for Alan I. Robert
Associate Administrator
for Hazardous Materials Safety

1/14/97
(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Dist: FHWA